

**BEFORE THE PUBLIC UTILITIES COMMISSION
OF THE STATE OF CALIFORNIA**

Order Instituting Rulemaking to
Establish Energization Timelines.

Rulemaking 24-01-018
(Filed January 25, 2024)

**COMMENTS OF THE VEHICLE-GRID INTEGRATION COUNCIL ON THE
ADMINISTRATIVE LAW JUDGE’S RULING DIRECTING PARTIES TO RESPOND
TO QUESTIONS ON ENERGIZATION ISSUES**

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In accordance with the Rules of Practice and Procedure of the California Public Utilities Commission (“Commission”), the Vehicle-Grid Integration Council (“VGIC”) hereby submits these comments on the *Administrative Law Judge’s Ruling Directing Parties to Respond to Questions on Energization Issues* issued by Administrative Law Judges (“ALJ”) Sasha Goldberg and Carolyn Sisto on June 6, 2024.

I. INTRODUCTION.

VGIC appreciates the Commission seeking additional comments for consideration to set the initial timelines for Phase 1 of this proceeding. VGIC is a 501(c)6 membership-based advocacy group committed to advancing the role of electric vehicles (“EV”) and vehicle-grid integration (“VGI”) through policy development, education, outreach, and research. VGIC supports the transition to a decarbonized transportation and electric sector by ensuring the value from flexible EV charging and discharging is recognized and compensated to achieve a more reliable, affordable, and efficient electric grid. There are many broad issues that need to be addressed to unlock the decarbonized future that California envisions. These are not in scope for the initial timelines being set in Phase 1 of this proceeding, but, as VGIC and other parties have commented, there should be robust consideration of additional items in Phase 2, including flexible service

connections and other solutions to allow for quicker energization and additional VGI within the timelines that will be set.

In this set of comments, VGIC responds to the questions outlined by the Ruling. These responses are based on the experiences and data from VGIC membership. We would like to caveat that many VGIC members actively implement VGI strategies, including managed charging platforms, automated load management (“ALM”) / flexible service connection technologies, bidirectional charging equipment, and the use of behind-the-meter (“BTM”) generation and energy storage technologies to reduce the costs of transportation electrification. Therefore, VGIC members may concurrently process an energization application for electric vehicle (“EV”) chargers (i.e., under Rule 15/16 or Rule 29/45) and generator interconnection (i.e., under Rule 21). For these projects, both processes impact the customer experience in getting their EV charger operational. While VGIC understands that this proceeding is only looking at the energization of new load, we reiterate our recommendations made throughout this proceeding that the Commission should consider how these timelines and processes interact with Rule 21 and track instances where Rule 21 applications are being submitted in conjunction with energization applications.

- II. Question 1: Please provide the time necessary for different energization steps for project(s) related to your industry using the five steps described below.**
- a. Customer Initiation/Intake (energy service upgrade or new service line application filing and IOU acceptance)**
 - b. Engineering & Design (IOU review of project and proposal for completion)**
 - c. Dependencies (fulfillment of local jurisdictional requirements, permitting, customer response to IOU’s requests)**
 - d. Site Readiness (evaluation of work necessary to complete the engineering design and customer availability for work to begin)**
 - e. Construction (length of time necessary for IOU and/or contractors to complete construction of the project)**

VGIC does not have specific recommendations on the time necessary to complete these various steps in the energization process, nor do we have recommendations on how these should

flow through to the timelines set in Phase 1. However, we do want to share information for the Commission to consider when setting Phase 1 timelines.

- **Energization timelines are slowing:** VGIC members have reported that energization timelines from beginning to end have increased significantly since 2020, more than doubling in these past four years. Given this recent trend, VGIC cautions against over-relying on the current utility average timelines to set future goals.
- **Utilities do not always start subsequent energization steps in a timely manner:** The Commission should consider not only the timelines for completing individual steps but also ensure that each step is started promptly. For example, many utilities have defined response times for pre-construction engineering activities, typically 30 days. However, in many cases, the utility will not acknowledge receipt of information from a developer until the end of the 30-day window and will subsequently request additional information, triggering an additional 30-day review period.
- **Significant delays at the final step of Construction are becoming more common:** VGIC members have shared that the final stage of energization, between completion of construction on the customer side and the final energization or permission to operate, has increased significantly over the past four years. Many times, developers and customer contractors are responsible for the installation of EV chargers, and these chargers can be fully finished and sit unenergized while the utilities finalize their inspections. The increase in the time for this final step is responsible for a significant portion of the overall timeline increases seen by VGIC members.

III. Question 2: Please provide the time necessary for different upstream capacity project(s) related to your industry using the three project types defined below.

Identify which steps have required incremental time from the IOU involved and include additional project types as necessary.

- a. New and upgraded circuit (could be a new service line, or an upgrade to an existing service line)**
- b. Upgrade Substation (upgrading a substation to support new or upgraded service for one or more new/upgrade service requests)**
- c. New Substation (building a whole new substation to support new or upgraded service for one or more new/upgrade service requests).**

VGIC does not have specific recommendations on the time necessary to complete distribution capacity upgrade projects.

IV. Question 3: Are there data on timelines for specific upstream capacity projects, beyond what the IOUs have provided, that should be utilized for Phase 1 issues?

- a. If so, what are those sources?**
- b. Please attach PDFs of any sources used to support your responses to this ruling.**

VGIC does not have specific recommendations on timelines for upstream capacity projects.

V. Question 4: What issues have you encountered when seeking permits or other approvals from local permitting authorities in California that have delayed energization projects?

- a. Please outline any reason(s) that delayed your project, the extent of the delay, and how many instances you experienced this type of delay.**
- b. Please break out your response by individual instances if you have experienced delays for multiple projects and/or in multiple local jurisdictions.**

Overall, VGIC agrees that local permitting exacerbates the length of project timelines. We believe that the utilities do have significant portions of the timelines within their control, but acknowledge that the local Authorities Having Jurisdiction (“AHJs”) can create additional and compounding delays. Generally, permitting delays, like utility delays, are caused by difficulties in communication - jurisdictions are often hard to reach and unresponsive. It can take months to schedule an appointment for intake and another month or two for the initial reviews to be complete. Additionally, even after permits are approved, the permits can take 2-3 weeks to be issued. This can be found across various jurisdictions, but the urban jurisdictions in the Bay Area and Greater

Los Angeles were highlighted among VGIC membership as being particularly difficult and, as the state's urban centers, are where a significant share of EV chargers are being installed.

Another issue contributing to project delays with AHJs is inconsistent information regarding permit requirements. It can be hard to navigate what is required for each jurisdiction, and the permitting processes can change due to design modifications like changing the point of interconnection, which adds supplemental reviews to the process. It is difficult to know which design changes will trigger various supplemental reviews and paired with a general lack of communication, this creates significant delays.

VI. Question 5: Are there any specific geographical concerns related to energization in California? If so, please describe the issues and the geographical area(s) where they are of concern.

VGIC has no comment.

VII. Question 6: How should the Commission be made aware of energization issues moving forward? Should there be a dedicated webpage and/or reporting place overseen by a third party or would the Commission's website be sufficient?

VGIC has no comment.

VIII. CONCLUSION.

VGIC appreciates the opportunity to provide these comments on Phase 1 of this proceeding. We look forward to further collaboration with the Commission and stakeholders on this initiative.

Respectfully submitted,

/s/ Zach Woogen

Zach Woogen

Interim Executive Director

VEHICLE-GRID INTEGRATION COUNCIL

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